

Authority for Personal Data
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Dutch Healthcare Authority
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Date

October 10, 2023

Our reference

z2023-02970

Your letter dated

August 2, 2023

Contact person

070 8888 500

Your reference

0462421/1478043

Subject

Advice on the amendment of the Regulation on Mental Healthcare and Forensic Care NR/REG-2418
regarding

the extension of the transition period for mental healthcare regulations

Dear [Recipient],

In a letter dated August 2, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft amendment of the Regulation on Mental Healthcare and Forensic Care NR/REG-2418 in connection with the extension of the transition period for mental healthcare regulations.

An assessment of the personal data aspects of the draft gives the AP reason to make a remark.

Scope of the draft

To provide health insurers with sufficient time to properly transition control and procurement processes in mental healthcare from the existing system, based on DSM main group classification, to the new system, based on care demand typology, a transition period of two years was provided. During this period, both data types must be included on the invoice. Due to delays in implementation, insurers will still require DSM main group data for 2024. Thus, the draft aims to extend the transition period to include the year 2024. From 2025 onwards, only the care demand typology needs to be mentioned. The draft only pertains to obligations related to invoicing and does not relate to the collection of more or different personal data than already provided for.

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Advice

The explanation outlines that it is necessary for implementation reasons to extend the transition period for health insurers. However, the explanation does not provide an assessment of the impact on the data protection of the individuals concerned regarding the requirement to mention not only the new care demand typology on the invoice but also the 'old' DSM main group for an additional year. It is not unreasonable to assume that this measure is proportional in advance, but since the impact is not

assessed, this cannot be inferred from the explanation.

The AP advises supplementing the explanation with an adequate assessment of the impact from the perspective of data protection of the individuals concerned and weighing this against the necessity from the perspective of careful execution, as outlined.

Disclosure

This advice will be published on the AP's website within two weeks.

Sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman